

“No protected person may be punished for an offence he or she has not personally committed.

Collective penalties and likewise all measures of intimidation or of terrorism are prohibited.”

– Article 33, Geneva Convention

WHAT IS COLLECTIVE PUNISHMENT?

Collective punishment is commonly defined as the universal punishment of a body of people for the decisions of a few bad actors in that body. In practice, such a policy is usually employed by tyrannical leaders who are unable to govern the aforementioned body, usually due to constraints of resource, time, access, understanding, or just *pure laziness*. Examples of collective punishment throughout history include: medieval times, most notably the policy of Sippenhaft¹ in Germany, where entire families would be slaughtered to punish lawbreakers; in Shin China (and under other notably tyrannical leaders), the practice of Zuzhu² (族诛); throughout American slavery, most notably in the case of the 1811 German coast uprising, where White planter oppressors slaughtered around forty-five innocent enslaved people and put their heads on pikes; in Nazi Germany, where any and every member of a family that helped a Jew was to be executed; as well as by the Israeli Defense Force numerous times against innocent Palestinians.³

¹Jewish Virtual Library (entry on Sippenhaft). “Sippenhaft.” Jewish Virtual Library. Accessed September 29, 2025. <https://www.jewishvirtuallibrary.org/sippenhaft>.

²Xinhua (archived). “(Theory) 2007-04/29 content_6040233.” Xinhua via Web Archive, April 29, 2007. Archived at https://web.archive.org/web/20070526004722/http://news.xinhuanet.com/theory/2007-04/29/content_6040233.htm.

³Human Rights Watch. “Israel: Collective Punishment against Palestinians.” Human Rights Watch, February 2, 2023. <https://www.hrw.org/news/2023/02/02/israel-collective-punishment-against-palestinians>.

WHY IS IT BAD?

While collective punishment usually takes on a much milder form today, its usage is still heavily looked down upon. In schools (especially primary and secondary), collective punishment is commonplace, despite the fact that it is fundamentally unjust. Just thinking about it, it does not ever logically make sense to punish a person for a crime they themselves did not consciously commit. As students, we cannot control the actions of others, nor is it our responsibility to convince our peers to follow the regulations that another party has set. Each person should be governed as an individual, not oppressed as a group. Collective punishment, at its core, goes against the Western, liberal, right-based legal framework that the United States (and Indian Springs School) was built on.

Perhaps the most famous revolt against collective punishment was the Boston Tea Party, a response by Enlightenment-fueled American colonialists to the British Intolerable Acts. As any Springs student who took Dr. NAME('s) AP World should know, Enlightenment philosophers were objectively against collective punishment as a form of legal enactment. Despite being known for defending the ruling class, John Locke argued that the law must *only* “do justice on an offender” in order to “preserve the innocent and restrain offenders.”⁴ Similarly, (though a lesser-known example) Cesare Beccaria wrote against punishments, in his *Dei Delitti e delle Pene*, that “cause the innocent to suffer the punishment of the guilty.”⁵ Additionally, Montesquieu famously insisted that laws should “punish only overt acts,” declaring that “all punishment which is not derived from necessity is tyrannical. The law is not a mere act of power;

⁴Locke, John. Second Treatise of Government. In Excerpts from Locke’s Second Treatise. Hanover: History Department, Hanover College. Accessed September 29, 2025.
<https://history.hanover.edu/courses/excerpts/163locke.html>.

⁵ Beccaria, Cesare. On Crimes and Punishments (translated). In Crimes and Punishments, Including a New Translation of Beccaria’s “Dei Delitti e delle Pene”. Project Gutenberg. Accessed September 29, 2025.
<https://www.gutenberg.org/files/58700/58700-h/58700-h.htm>

things in their own nature indifferent are not within its province.”⁶ While there are countless other examples, the words of these thinkers were among the first to condemn collective punishment as completely wrong explicitly. However, there’s no doubt in my mind that many were complaining about it before as well; I know people weren’t exactly huge fans of Hammurabi’s law code.

While moral problems with collective punishment go back to Enlightenment thinking, the main issue with it today goes beyond such. The Geneva Conventions forbid it, declaring that “no protected person may be punished for an offence he or she has not personally committed.”⁷ As Hannah Arendt, a modern day philosopher, famously wrote “there is no such thing as collective guilt or collective innocence.”⁸ Even children (though not Springs’ administration, apparently) understand this: developmental psychologists have shown that by about first grade, children overwhelmingly judge collective punishment to be unfair, preferring instead that teachers discipline only the individual who misbehaved.⁹

Not only is collective punishment unjust, but it *also doesn’t work*. Penalizing well-behaved students just makes them detest you and therefore less likely to follow the rules you’ve set.^{10 11} Behavioral economics shows that group sanctions, as opposed to individual actions as a form of punishment, do not increase regulatory compliance (actually reducing it)

⁶Montesquieu, Charles-Louis de Secondat, Baron de. “Montesquieu.” Stanford Encyclopedia of Philosophy. Accessed September 29, 2025. <https://plato.stanford.edu/entries/montesquieu/>.

⁷ International Committee of the Red Cross. *Geneva Convention (IV) Relative to the Protection of Civilian Persons in Time of War*, August 12, 1949, Article 33. Accessed September 29, 2025. <https://ihl-databases.icrc.org/en/ihl-treaties/gciv-1949/article-33/commentary/1958>.

⁸ Arendt, Hannah. *Responsibility and Judgment*. Edited by Jerome Kohn. New York: Schocken Books, 2003

⁹ Helwig, Charles C., and Elliot Turiel. “Children’s Social and Moral Reasoning.” In *Handbook of Childhood Social Development*, edited by Craig Hart and Patricia Smith, 475–90. Oxford: Blackwell, 2002

¹⁰ Vaish, Amrisha, Michael Chandler, and Jonathan Sommerville. “How Children Evaluate Collective and Targeted Punishment.” *Frontiers in Psychology* / PMC, 2024. <https://pmc.ncbi.nlm.nih.gov/articles/PMC11238698/>.

¹¹ Molenmaker, W. E., et al. “Discriminatory punishment undermines the enforcement of cooperation in pluriform groups.” *Scientific Reports* 13 (2023). <https://www.nature.com/articles/s41598-023-33167-2>.

within groups, supposedly because participants perceived them as unfair.^{12 13 14} Of course, this means very little in a school context, where much less research has been applied. Still, studies of collective punishment in school have found that it similarly backfires.¹⁵ Multiple papers have found that students have increased noncompliance and reduced feelings of trust and safety when teachers decide to unfairly punish them as a group instead of individually.^{16 17}

Most horrifyingly, the notion of collective punishment goes against the Springs' ethos. Any faculty member who was here in the “glory days” of Springs will rave about the freedoms Springs students used to have. Of course, while it’s probably good that we don’t have some of those freedoms anymore (I’ve read some Woodward Post articles I believe were from the 90s—the cacophony of horrible edgy humor and rampant sexism remind me of a past version of myself I wish didn’t exist), many freedoms that I firmly believe Springs students should certainly have are being phased out. In many ways, these rights are subject to a “doublespeak” of sorts: they are given to us in the Constitution *de jure* but equally negated in the Reed N’ Heed or Res Life Handbook *de facto*. For example, the constitution ensures students that “each individual has certain rights that are equal for each person” and that students have “the right to be considered innocent until proven guilty.”¹⁸ Despite this (**as discussed next**), the entire senior class can be

¹² Fischbacher, Urs, and Simon Gächter. “Measuring the Efficacy of Collective Sanctions Experimentally.” *Games and Economic Behavior* / PMC, 2021. <https://pmc.ncbi.nlm.nih.gov/articles/PMC8031421/>.

¹³ Chapkovski, P., et al. “Measuring the Efficacy of Collective Sanctions Experimentally.” *PLOS ONE* 16, no. 9 (2021). <https://journals.plos.org/plosone/article?id=10.1371/journal.pone.0248599>.

¹⁴ Heckathorn, Douglas D. “Collective Sanctions and the Creation of Prisoner’s Dilemmas.” *Social Forces* 67, no. 3 (1988): 511–34.

¹⁵ Van Miltenburg, Nicole, et al. “Implementing Punishment and Reward in the Public Goods Game.” *The Commons Journal* (2014).

¹⁶ Zhang, Zhen, and Chunhui Qi. “Teachers’ Punishment Intensity and Student Observer Trust: A Moderated Mediation Model.” *Behavioral Sciences* 14, no. 6 (2024). <https://doi.org/10.3390/bs14060471>.

¹⁷ Welsh, Richard O., and Shafiqua Little. “The School Discipline Dilemma: A Comprehensive Review of Disparities and Alternative Approaches.” *Review of Educational Research* 88, no. 5 (2018): 752–794. <https://doi.org/10.3102/0034654318791582>.

¹⁸ Indian Springs School. *The Indian Springs School Constitution*. PDF. Accessed September 29, 2025. https://bbk12e1-cdn.myschoolcdn.com/ftpimages/335/misc/misc_221049.pdf.

held guilty for acts they did not commit. Additionally, despite the aforementioned right of innocence until proven guilty (and, as is implied by this, a right to fair trial), the Residential Life handbook gives Mr. NAME the ability to give work hours *without* Judiciary review, thus **removing** boarders' right to a fair trial.¹⁹ In addition to being in the rulebook, this policy has been, in fact, enacted. I personally know multiple boarders who have been given work hours by Mr. NAME without being sent to Judiciary—there was no “innocent until proven guilty.” In such a way, I believe that our constitutional rights, as students, are being gradually phased into functional irrelevance by the undemocratic revising of the Read n' Heed and the Res-Life Handbook, both of which are updated at the whim of Springs Administration only.²⁰

COLLECTIVE PUNISHMENT AT SPRINGS

One example of collective punishment, **literally written into the Read n' Heed**, is the following example of senior privilege²¹:

*“The senior class may petition the administration for the privilege to sign out for lunch one day a week. If there are any individual problems (e.g., lateness to classes, careless driving, etc.), **the entire class may lose the privilege.**”*

¹⁹ Indian Springs School. *Residential Life Handbook (Working Copy, Spring 2025, Updated June 2025)*. PDF. Accessed September 29, 2025. https://bbk12e1-cdn.myschoolcdn.com/ftpimages/335/misc/misc_236140.pdf.

²⁰ Indian Springs School. *Read 'N' Heed: Student-Parent Handbook, 2023-2024*. PDF. Accessed September 29, 2025. https://bbk12e1-cdn.myschoolcdn.com/ftpimages/335/misc/misc_224149.pdf.

²¹ Indian Springs School. *Read 'N' Heed: Student-Parent Handbook, 2023-2024*. PDF. Accessed September 29, 2025. https://bbk12e1-cdn.myschoolcdn.com/ftpimages/335/misc/misc_224149.pdf.

I would love for a member of the Springs administration (the very people who decide such things) to explain to me how the above statement is in any way (ethically, logically, socially, or otherwise) fair. In my mind (and the mind of most of history's philosophers), the above is an example of an injustice that has been written verbatim into our school policy. The worst part? Nobody's doing anything about it. Everyone at Springs has come to accept that our administration has a morally unjust clause in our rulebook. Insert your valid though scientifically incorrect "frog in boiling water" analogy here.

Here at Springs, collective punishment is also greatly exemplified by this year's new dorm policies: chiefly, the prevention of boarding students from entering their dorms during the day. It was undoubtedly devised because higher administration at Springs (the deans' office, not faculty) believes that there are some boarding students who prefer to sleep all day and skip class rather than attend it (I have been told this verbatim by multiple administrators). To rectify this, instead of addressing the problem at its root, the Springs administration decided to punish *all* boarders for the actions of what is almost certainly a very small minority of boarders. Does that sound like collective punishment to you?

"BUT IT'S NOT COLLECTIVE PUNISHMENT– WE PROMISE!"

I've talked to Mr. NAME, and he basically told me that the reason for the new dorm rules is exactly as stated above, and that "he's a team player kind of guy." In other words, he was honest with me and admitted that he is, in fact, okay with collectively punishing all of the boarders, even if most of them did nothing wrong.

Of course, if you were instead to ask Mr. NAME or Dr. NAME about the new dorm rules, they would likely do an impressive amount of mental acrobatics just to come to the conclusion that their new dorm policies are not, in fact, a punishment, but a way of *encouraging boarders to go to their classes and engage with the outside world*. Now, this may be entirely true, but the fact remains that, scientifically speaking, a “punishment” is defined as any introduced stimulus that is invoked to reduce the frequency of a behavior.²² No matter how you spin it, the Springs administration decided the new dorm policies would do one thing: condition the boarders to spend less time in the dorms. In this example of behavioral conditioning, the introduced stimulus is the removal of something we want: our right to be in the dorms during the day. As it follows, the (un)desired behavior is “spending all day in the dorms”, a negative behavior that some boarders may exhibit. Consulting the operant conditioning table below, we see:

Table 1 Four Response Consequences

	<i>Adding a Consequence</i>	<i>Removing a Consequence</i>
<i>Increases the likelihood of future behavior</i>	Positive reinforcement	Negative reinforcement
<i>Decreases the likelihood of future behavior</i>	Punishment	Extinction

Source: David E. Conroy.

From a psychological definition, the new dorm policies are most certainly a form of punishment (negative punishment if you want to be exact).

²² Thomas, Sarah, Caroline Kelsey, and Amrisha Vaish. “How Children Evaluate Collective and Targeted Punishment.” *Social Development* (2024). Accessed September 29, 2025. <https://pmc.ncbi.nlm.nih.gov/articles/PMC11238698/>

However, another valid argument one could make is that there are other reasons that the Springs administration is applying such a policy: I have heard that it is to encourage socialization between boarders and day students. **This seems like a fair point, and it is, but do not forget that such a policy is equally an attempt at decreasing the same behavior: boarders spending time in their dorms, and it is doing so by “adding a consequence,” specifically one of dorm access removal.** As such, those other reasons are equally punishments, just punishments meant to exact different goals.

Additionally, even if, for whatever reason, they *weren't* (that is to say, Springs administration's other goals with the new dorm policy were definitely *not* forms of punishment), as long as one accepts the notion that at least *part* of the goal of the new dorm policy was to prevent skipped classes, the prospect of such a policy being (in any way) a form of collective punishment entirely pollutes the validity of the policy itself—a rule mustn't be only partly just, as long as it is not entirely just than it is not just at all.²³

A SOLUTION

If you've actually managed to read all of this, you probably assume I have a long-winded, philosophy-informed, pontifical solution that rectifies the above injustice I've spent a whole 8-something pages describing. However, you'd only be half right. Given that both the Read n' Heed and the Res Life Handbook blatantly violate our constitutional rights as students, the only solution one needs to dispel the above evils is to follow the constitution. **I believe that the Indian Springs Constitution, as it pertains to our rights, should have an explicit statement**

²³ Zipursky, Benjamin C. “The Inner Morality of Private Law.” American Journal of Jurisprudence 58 (2013): 27–52.

granting it absolute and immutable authority over the Read n' Heed and Res Life Handbook, much like the American Bill of Rights does to any American Law. If one interprets the Indian Spring Constitution literally, all punishments of a collective kind (as described above) should be banned, as well as most of the punitive power that Mr. NAME has.

Additionally, the constitution contains one line which has been overlooked by the entire Springs Administration: "Individuals are guaranteed maximum freedom so long as they do not infringe upon the rights of others or threaten the general welfare of the school-community." In philosophy, this concept is known as the harm principle: a liberal idea devised by John Steward Mill stating that the only justification for interfering with an individual's liberty is to prevent harm to others. **If this line is to be taken as a derivative of Mill's principle, then various unjust rules in the Read n' Heed and Res Life Handbook should equally become castrated or removed altogether. These may include, but are not limited to, the following quotations from the two documents:**

- "Dorms are closed during the school day" (please note this is independent of the collective punishment argument)
- "In addition to Community Dining, explained in the next section, we may employ additional methods of community building, such as Mandatory Fun, including Boarding Orientation or certain closed evenings or weekends"
- "Students may not use their cars as lounges during the day"
- "Suite commons and individual student doors must remain propped open"

Finally, it is also necessary to add an additional right to the constitution that frees students from the prospect of collective punishment of any form, for any reason. Though this is

redundant given the above statements, I believe the evils of collective punishment are strong enough to warrant an explicit expulsion of it.